



OREGON YOUTH AUTHORITY
Policy Statement
Part III – Youth Services (Community)



Subject:

Use of Physical Intervention and Restraints in the Community

Section – Policy Number:

A: General Administration – 8.0

Supersedes:

**III-A-8.0 (10/21)
III-A-8.0 (7/17)
III-A-8.0 (7/11)**

Effective Date:

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Date of Last

Review/Revision:
None

**Related
Standards
and
References:**

- [ORS 161.205 – 161.219](#) Use of physical force
- [ORS 419C.550](#) Legal custodian of youth; Duties and authority
- [ORS 420A.010](#) Creation and duties
- [ORS 418.532](#) Notices to children in care
- [Community Programs: Restraint and Seclusion](#) (youth notice)
- [OYA policy: I-E-1.0](#) Director's Incident Notification and Report
- [I-E-4.0](#) Incident Reviews
- [III-A-1.0](#) Youth Incident Reports - Community
- [III-C-1.1](#) Field Custody and Use of Detention/Jail
- [III-D-2.1](#) Youth Transports and Escorts within the Community
- [Attachment A: OYA Physical Intervention and Restraint in the Community Continuum Matrix](#)
- [Attachment B: OYA Physical Intervention and Restraint in the Community Continuum Circles](#)

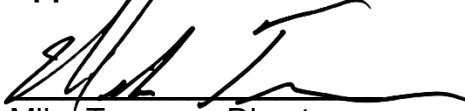
**Related
Procedures:**

- None

Policy Owner:

Community Services Assistant
Director

Approved:


Mike Tessean, Director

I. PURPOSE:

This policy provides OYA staff instruction on using physical intervention and restraints on OYA youth who are supervised in the community.

II. POLICY DEFINITIONS:

Constant supervision: When a youth is within direct visual and auditory proximity to staff to assure the youth's safety and to intervene if any problematic or self-injurious behavior is observed. Constant supervision does not include video monitoring.

Excessive force: A type or amount of force beyond that which is reasonably necessary to control the situation; or the continued use of physical intervention after it is no longer reasonably necessary.

Intervention: The means by which a youth's inappropriate behavior is redirected to a more acceptable level. Staff interventions are designed to alter the environment to allow the individual youth to gain self-control, self-regulate their behavior, and learn new prosocial behavior skills. The type of intervention used will directly correlate to the type of behavior needing change.

Physical intervention: Direct physical contact where reasonable force is applied to a youth against resistance, either to restrict movement or mobility or to disengage from harmful behavior.

Security restraints: Tools designed to restrict and control individual movement during a physical intervention, and to prevent an escape during a secure transport or escort. Security restraints include handcuffs, leg irons, and transport belts.

III. **POLICY:**

OYA has identified diversity, equity, and inclusion as an agency priority and initiative, with a goal to build a respectful, diverse, equitable, and inclusive environment for youth and staff that is free from harassment, discrimination and bias. Data shows youth of color and LGBTQ+ youth are disproportionately represented in the juvenile justice system. While OYA is only one part of that system, we play a critical role in addressing the historical and systemic inequities it perpetuates. Staff must be aware that any use of physical intervention can be triggering for youth with trauma histories, including racial trauma. Additionally, staff must be aware of their own potential for bias and how that influences their decision to use physical intervention.

Staff may use physical intervention and restraints on youth as an emergency intervention used only when the potential danger of intervening is surpassed by the imminent danger of the youth's behavior. Physical intervention and restraint are used as a last resort when a youth is demonstrating an imminent physical threat to self or others. Only staff who have been trained in physical intervention and restraint by the OYA Training Academy or OYA trainers approved by the OYA Training Academy may apply these interventions.

The Physical Intervention and Restraint Continuum Matrix (Attachment A) describes OYA's physical intervention continuum on youth who are on supervision in the community. Staff must use the least amount of physical intervention measures necessary to provide for the safety of the youth or others.

Staff may use restraint devices on youth while providing secure transports in the community, as defined in OYA policy III-D-2.1 Youth Transports and Escorts within the Community.

Staff have a duty to intervene when another staff member is not following the standards in this policy while performing a physical intervention or restraint.

See OYA policy III-C-1.1 Field Custody and Use of Detention/Jail regarding taking a youth into custody (comparable to adult arrest).

IV. **GENERAL STANDARDS:**

- A. The purpose of any staff intervention is to:
1. Provide opportunity for the youth to self-regulate their behavior and learn prosocial behavior skills; and
 2. Protect the safety of youth, staff, and others.
- B. Youth rights required notice
1. Staff must ensure that a youth placed in residential or proctor programs that can serve minors receives a youth restraint and seclusion notice ([Community Programs: Restraint and Seclusion](#)), regardless of the youth's age.
 2. Staff must review this notice with the youth upon each placement, even if the youth has received the notice during a previous placement.
 3. OYA staff are responsible for ensuring the youth receives the notice, acknowledges understanding of the information, and has the opportunity to ask questions.
- C. Situational assessment
1. Staff must be constantly aware and assess many factors while working with youth, including:
 - a) The youth's demeanor, body language, and any other indicators that the youth might be experiencing distress;
 - b) The youth's history of trauma or prior behavior escalations; and
 - c) The current environment (e.g., public space, additional staff as resources).
 2. Staff must be aware of their own biases and how those biases might impact their assessment of a youth's behavior.
 3. Staff must be aware of cultural differences in how youth may express emotion and frustration that may impact their assessment of a youth's behavior (e.g., tone of voice, verbal communication with hand or body movements that may be perceived as aggression).
- A non-physical intervention may help deescalate a youth's unsafe behavior and the need for physical intervention (e.g., showing empathy, removing the triggering stimulus; redirecting the youth's attention/focus; reducing own volume and rate of speech).

D. Physical intervention and restraint

1. Staff use of physical intervention and restraint is permitted on youth who are on supervision in the community under the following circumstances:
 - a) Self-defense; and
 - b) Protection of youth, staff, or others.
2. The Physical Intervention and Restraint Continuum Matrix (Attachment A) must be used as the guideline to the physical intervention and restraint measures authorized by OYA to use with youth on supervision in the community.
3. Movement along the Physical Intervention and Restraint Continuum from a lesser to a more restrictive and severe option may become necessary, as determined by the youth's actions and behavior. Staff must use the least amount of physical intervention measures necessary to provide for the safety of a youth or others.
4. The staff member using physical intervention will also decrease or stop the use of the intervention whenever a less restrictive or severe intervention is reasonably believed to be capable of keeping the youth and others safe.
5. It is acknowledged that a youth's escalation, resistance, or change in crisis behavior may be sudden. When this occurs, the staff member is not required to sequentially progress through the lesser to more restrictive intervention options.
6. When a youth's behavior has deescalated, staff must begin communication to re-establish rapport, talk about what happened, and discuss strategies for the youth to self-regulate their behavior in the future.
7. In compliance with OYA Professional Standards policy, inappropriate comments (derogatory, demeaning, taunting, etc.) from staff directed at youth, or between staff, are prohibited.
8. The following types of physical interventions are prohibited:
 - a) Physical intervention used as coercion, punishment, or retaliation; and
 - b) Physical intervention techniques that are applied for the purpose of inflicting physical pain, undue physical discomfort, or to restrict blood circulation or breathing.
 - c) If prohibited or excessive force is used during a physical intervention, staff must either stop or attempt to stop the

event from continuing. Staff must report such use of force immediately to their supervisor.

9. If physical intervention is used, staff must ensure that:
 - a) The youth is examined by a medically trained person as soon as safely possible, whether or not injury is visible; and
 - b) A Youth Incident Report (YIR) is initiated and contributed to by each staff participating in the intervention, including staff who witnessed the incident.
10. The YIR must be reviewed and completed according to OYA policy III-A-1.0 Youth Incident Reports - Community.
11. All incidents of physical intervention require an incident review as described in OYA policy I-E-4.0 Incident Reviews.
12. Incident Notifications
 - a) Staff must notify their field supervisor of all uses of physical intervention or restraint.
 - b) Any incident that results in an inpatient hospital admission of a youth, staff, or other person warrants Director's Office notification. (See OYA policy I-E-1.0 Director's Notification and Incident Report.).

E. Authorized restraint devices

1. Only restraint devices authorized by the OYA director may be used on youth supervised in the community. The director has authorized security restraint devices for use on youth in the community.
2. Staff may only use authorized devices issued by OYA. Staff are prohibited from using personal restraint devices on youth.
3. Restraint devices must be stored in a controlled, secure area. Field supervisors must ensure restraint devices are inventoried and accounted for at least annually.

F. Use of restraint devices

Restraint devices are secured to a youth's body to assist in controlling the youth's movement during a physical intervention, or to prevent escape during a secure youth escort or transport.

1. When a youth is demonstrating an imminent physical threat to self or others, staff may reasonably conclude that the appropriate intervention requires placing the youth in restraint devices until the youth demonstrates and commits to safe behavior or law enforcement arrives, whichever happens first.

2. Youth placed in restraint devices by staff must be under constant supervision by staff until jurisdiction is changed to law enforcement or county detention.
3. Staff may notify law enforcement when a youth is not complying with the application of restraint devices.
4. Staff are not authorized to transport a youth who is actively non-compliant or assaultive. When a youth presents a risk of escape, property damage or assaultive behavior, staff must contact their supervisor to request use of a state authorized secure transport vehicle.
 - a) Secure transport vehicles are equipped with a split safety cage and are stationed in Jackson county, Linn county, and Clackamas county to assist with high-risk transports.
 - b) Staff must contact law enforcement if the youth's behavior creates an imminent threat to the safety of staff, the youth, or others.
5. The following restraint devices or techniques are prohibited:
 - a) Placing a youth in a prone position with arm(s) and leg(s) restrained behind the back;
 - b) Body positions or techniques that are designed to inflict physical pain, undue physical discomfort, or to restrict blood circulation or breathing;
 - c) Using restraints to punish youth, or as a convenience or substitute for staff supervision; and
 - d) Chemical agents or restraints.
6. Restraint devices may be removed during secure transports as described in OYA policy III-D-2.1 Youth Transports and Escorts within the Community.

G. Training

1. All OYA staff that supervise or transport youth in the community are required to have basic self-defense, physical intervention and restraint training offered through the Training Academy or an OYA trainer approved by the Training Academy.
2. Only staff who have been trained by the Training Academy or an OYA trainer approved by the Training Academy in physical intervention and restraint may use these interventions with youth in the community.

3. Only staff who have been trained by the Training Academy or an OYA trainer approved by the Training Academy in restraint device usage may use these devices with youth in the community.
4. Training must include the warning signs of and risks for positional asphyxia when restraining a youth.

Youth who are overweight, have certain medical conditions such as asthma, or take certain types of medications are at increased risk for positional asphyxia.

V. LOCAL OPERATING PROTOCOL REQUIRED: NO

Attachment A: OYA Physical Intervention and Restraint in the Community Continuum Matrix¹

Youth Behavior – Crisis Development	Staff Attitude – Approach	Intervention Applied	Level of Continuum
Anxiety A noticeable increase or change in behavior (pacing, finger drumming, wringing of the hands, staring, posturing)	Supportive Empathic, nonjudgmental approach attempting to alleviate anxiety.	Staff presence , communication. May include another staff member(s) to mediate or assist in alleviating anxiety.	Passive countermeasures
Defensive Continued signs of unrest, belligerent, challenging authority, not responding to orders	Directive Staff member takes control of a potentially escalating situation by setting limits.	Verbal direction , verbal de-escalation using directives. May require third-party intervention.	Passive countermeasures
Acting-out Loss of behavior control, aggressive behavior showing imminent physical threat to self or others.	Controlling Safe use of physical restraint techniques used to keep the youth and others safe, only until the youth can demonstrate and commit to safe behavior, or arrival of law enforcement.	Physical intervention may include: 1. Personal protection (self-defense) 2. Restraint holds and device application	Active countermeasures
Tension Reduction Decrease in physical and emotional energy which occurs after a youth has acted out, characterized by the regaining of rationality and behavior control.	Therapeutic Rapport An attempt to re-establish communication with a youth who is experiencing tension reduction.	De-escalation techniques focused on talking about what happened and how to prevent acting-out in the future.	Passive countermeasures

¹ Description of youth behavior and staff attitude are based on training material provided by the Crisis Prevention Institute, Inc. (CPI©).

Attachment B: OYA Physical Intervention and Restraint in the Community Continuum Circles

